

HEADNOTE

“1. As Germany has issued an indication within the meaning of Rule 14.2 (c) RoP, the judge-rapporteur may, in the interest of the panel, issue an order to the effect that the judges may, inter alia, issue and deliver any decision and order in German together with a certified translation into English within the meaning of Rule 118.8 RoP.

2. If the language of the proceedings is changed to English after the oral hearing and immediately before the final order is issued, the judge-rapporteur may make use of this possibility in order to ensure that the Application for provisional measures can be decided immediately.”

COURT

PROCEEDINGS

Procedural order

PATENT

EP 2 697 391 B1

Method and product for localised or spatial detection of nucleic acid in a tissue sample

KEYWORDS

Language change

Language of the proceedings

Indication

Rule 14.2 (c) RoP

Application for provisional measures

Certified translation

Rule 14

Use of languages under Article 49(1) and (2) of the Agreement

SUMMARY

The Local Division in Düsseldorf issued a ruling on an application for provisional measures. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, Germany's indication under the procedural rules permits the judge-rapporteur to authorise decisions and orders to be issued in German with certified English translations when circumstances warrant. To expedite proceedings, if the language of the case is switched to English immediately before the final order following the oral hearing, the judge-rapporteur may use this authorisation to ensure the application for provisional measures can be decided without delay.